

111	McGrew v. Heimbuch, 2025-01535253	MOTION FOR LEAVE TO FILE DEMURRER – CONTINUED TO 09/28/2026
112	Nguyen v. Ky, 2024-01380521	DEMURRER – SUSTAINED IN PART WITHOUT LEAVE TO AMEND AND OVERRULED IN PART Defendant Haiky Nguyen (“Defendant”) demurs to the First Amended Complaint (FAC) of plaintiff Tuan Nguyen (“Plaintiff”). Demurrer to Entire FAC Defendant argues that all of the claims, even if valid, were discharged by a voluntary Chapter 7 petition filed by Defendant on October 28, 2022. “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.” (Code Civ. Proc., § 430.41(b).) Here, Defendant could have raised the argument regarding the bankruptcy discharge in the Demurrer to the initial Complaint but failed to do so. Therefore, the Demurrer on this ground is OVERRULED. Fraud and Deceit Defendant argues that the fraud and deceit cause of action fails because the FAC still does not plead how or by what means the alleged promise was communicated or that Defendant made any promise without an intent to perform. In sustaining the prior Demurrer, the Court held the fraud and deceit cause of action was insufficient because there was no allegation that Defendant did not intend to perform the promise at the time she made it. The FAC alleges that Defendant knew her representation that she intended to repay the loan was false but does not allege any facts showing how, when, where, to whom, and by what means the representation was tendered. Thus, the cause of action remains insufficiently pled. (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.) Thus, the

		Demurrer to the fraud cause of action is SUSTAINED without leave to amend. Conversion Defendant argues the conversion claim also independently fails because the FAC alleges that Plaintiff voluntarily transferred the funds pursuant to a loan agreement and the mere failure to repay a loan does not give rise to a conversion claim. In sustaining the prior Demurrer, the Court noted that the simple failure to pay money owed does not constitute conversion and there were no allegations that Plaintiff entrusted the subject funds to Defendant for a specific purpose or that Defendant interfered with Plaintiff's possessory interest in the funds. The FAC continues to allege that the funds were loaned to Defendant by Plaintiff for a specific time period. Because the simple failure to pay money owed does not constitute a conversion, this cause of action remains insufficiently pled. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 284.) Thus, the Demurrer to the conversion cause of action is SUSTAINED without leave to amend. Money Had and Received Defendant argues the money had and received claim fails because an express contract governs the parties' relationship and, therefore, a quasi-contractual claim based on the same subject matter does not lie. As with the bankruptcy discharge issue, Defendant did not previously demur to this cause of action. Thus, pursuant to Code of Civil Procedure section 430.41(b), the Demurrer to this cause of action is OVERRULED. Defendant to file an answer to the FAC within 15 days. Clerk to give notice. MOTION TO BE RELIEVED AS COUNSEL – GRANTED Meghan C. Murphey of Murphey & Murphey ("Moving Counsel") moves to be relieved as counsel of record for defendant Haiky Nguyen. The motion is unopposed and Moving Counsel has stated a basis for permissive withdrawal under the Rules of
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		Professional Conduct, Rule 1.16. All other requirements are satisfied. Thus, the Motion to Be Relieved as Counsel is GRANTED. The Court will interlineate the proposed order filed with the Court (ROA 84) to delete the trial date of 07/27/2026 and add the status conference on 11/16/2026. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Counsel to give notice.
113	Robicheaux v. Rowshan, 2022-01261647	MOTION FOR SANCTIONS This motion was filed several months ago. Before the Court decides what (if any) sanction is appropriate, it will need to figure out whether and when the discovery complained about in this motion was produced.
114	Vickers v City of Newport Beach, 2026-01565611	HEARING VACATED DUE TO DESIGNATION AS COMPLEX MATTER
115	Davis v. Bachmayer, 2022-01291164	DEFENDANT’S MOTION TO COMPEL DEPOSITION OF PLAINTIFF – DENIED Defendant John T. Bachmayer’s (“Defendant”) motion to compel the deposition of Plaintiff Jaimie Davis (“Plaintiff”) is DENIED. Plaintiff timely served valid objections to the deposition notice on February 27, 2026. (Bachmayer Decl. ¶5, Exh. C.) The primary objection was as to the location specified in the notice, on the grounds that it violated CCP §2025.250(a). That section provides: (a) Unless the court orders otherwise under Section 2025.260, the deposition of a natural person, whether or not a party to the action, shall be taken at a place that is, at the option of the party giving notice of the deposition, either within 75 miles of the deponent's residence, or within the county where the action is